

and preposterous confusion : God therefore, in his wisdom, ordered and ordained their bounds, in the magistrate on the one side with instruction, and the subject on the other side with protection ; which instruction when he shewed them, the king's throne is upheld by justice : and David was commanded to rule his people with justice and judgment ; and the like commandment is given to others in subordinate places, not to pity the person of the poor, nor to stand in awe of the face of the mightiest, but to weigh the simplicity and integrity of conscience. For mark the example of the most holy and reverend judges, Moses, Samuel, and the rest, to whom their greatest comfort was, that they could say, ' Whose ox or ass have I taken ? From whom have I received a reward ? ' And by the course of piety and divinity, we that sit sometimes to judge others, are at another time to stand at an higher bar, to receive judgment from heaven.—With the great grace, and benefit of protection, God calls them by his own name, God's children of the highest ; God being present amongst them to direct them, and defend them ; God standeth in the congregation of princes, he is amongst all the people : thou shalt not detract nor slander the judge, nor speak evil of the princes of the people. And in two several epistles, both in Peter and in Jude, it is said, ' That in the latter days there shall be wicked men, that shall speak evil of magistrates, and men of authority, blaspheming them : ' as if it were blasphemy, though not against God, yet against those that are the image of so great a God.—And therefore, since Wraynham hath blasphemed, spoken evil, and slandered a chief magistrate as any in the kingdom ; it remaineth, that in honour to God, and in duty and justice to the king and kingdom, that he should

receive severe punishment ; for it is his cause to-day, and it may be ours every day : and have not some, for justice sake, been enforced to endure the threatening of their heads ? Wherefore, if greater punishment had been given him, I should have assented ; for justice belongeth to us, but mercy to our gracious sovereign. Wherefore I agree in all things with the sentence before given.

Suffolk, Lord Treasurer. I perceive, as the prisoner at the bar was charged at first, that he had foully offended, and ought to have yielded himself at the first, and not to have made his offence greater, by defending a bad cause. My lords who have heard his fault in part laid out, and censured him, I think they have done very worthily. For the party himself, I would I could come to him with a little better charity than I can, for his answer did more displease me, than his censure ; for I see his spleen and his humour grows, rather to defame a worthy man, than to free himself, how unjustly, I appeal to the whole world ; who came to his place with as much satisfaction to all hearts, and applause, with as good carriage as any man I ever heard came before him.—The thing that I would conclude with, is, that I would be glad that all that hear us might take us aright that are judges ; we desire not to be forbore by any subject's tongue, that hath cause to complain : and therefore do it not for any particular respect to ourselves, but for the public course of justice, and for the care we have of the public good, and for nothing else.—For the fault itself, it hath been so well opened by all the lords, that I will spare to hold you longer in speaking of it. And for the sentence, I think it very fit and just : and therefore agree with the rest.

114. The Case of WILLIAMS, of Essex, for Treason : B. R. Easter, 17 JAMES I. A. D. 1619. [2 Rolle's Reports, p. 88.]

WILLIAMS, a Papist and barrister of the Middle Temple, but expelled seven years ago for his religion, was indicted for High Treason for the writing of two books, one called "*Balaam's Ass*," and the other was called "*Speculum Regali*," in which he took upon himself the office of a prophet, and affirms that the king which now is, will die in the year of our Lord 1621, which opinion was grounded upon the prophecy of Daniel, where that prophet speaks of a time and times and half a time, [Dan. ch. 7, v. 25. ch. 12, v. 7.] and then Antichrist shall be revealed until the end of the world, viz. five years and a half before the end of the world, which contradicts the popish opinion of Williams ; and Williams holds that the time in which Antichrist shall be revealed, is the time in which sin shall be at the highest, and then the end is nigh, but such is our time, sin is now at the highest, ergo, &c. And he also says, that this land is the abomination of

desolation mentioned in Daniel, [In king James's translation, the phrase in Daniel is, " the abomination that maketh desolate ; " See chap. 11, v. 31. ch. 12, v. 11, yet it is quoted, in the same translation of the New Testament, from Daniel in the words " abomination of desolation." See Matthew ch. 24, v. 15. Mark ch. 13, v. 14.] and that it is full fraught with desolation, and that it is a habitation of devils, and the Antimark of Christ's Church ; and upon these and many other such opinions contained in his book, all the court clearly agreed that he was Guilty of High Treason, and this by the common law, for these words import the end and destruction of the king and his realm, and that Antichristianism and false religion is here maintained, which is a motive to the people to commit treasons, rebellions, &c. for, by Mountague, treason is defined to be *crimen lese majestatis*, and how can the king be more hurt than by the branching and

buzzing of such opinions in the ears and hearts of the people, being his subjects, and Glanvil defines treason to be, viz. *qui aliquid machinantur in necem regis*, see 25 E. 3.—But Williams for himself objects, that what he did and wrote, was not out of any malicious or disloyal heart towards the king, but proceeded out of his love, and that he intended this as a caveat and admonition, whereby the king should avoid these mischiefs which were very like for to happen to him, which appears many times in his book, as he says, for when he has declared the judgment and destruction, &c. he concludes the sentence thus, viz. (which God avert) or such like words. 2. This matter rests only in opinion and thought, and it was not carried to any overt act in execution, for no rebellion, treason, or other mischief ensued upon it. 3. He inclosed his Book in a box sealed up, and so secretly conveyed it to the king, and never published it.—As to the first objection, the court answer, that no respect shall be paid to the good intention of a man, when his words and actions appear to the contrary, and when a man had talked treason in the previous part of a sentence, he cannot qualify it by ‘God save the king.’ As to the second objection, howbeit rebellion, treason, &c. did not ensue upon it, yet Doddridge said that the rule is *in atrocioribus delictis, punitur affectus, licet non sequatur effectus*; for if an attempt be made to imprison the king, albeit his death is not intended, still this is high treason, for it is the means by which his death may ensue, and this was the case as Mountague said of king E. 2. *

* As to this, see Luders on the Law of High Treason, in the article of levying war, 77;

and he cited sir Nicholas Throgmorton's Case in Dyer, * where was only a conference concerning the death of the queen, and it did not take effect, and still it was resolved to be high treason, and it cannot be said in this case that this matter rests in thought, since it is reduced to writing, for *scribere est agere*, † and if words can amount to treason, (as clearly they may) *à fortiori* when they are reduced to writing, and although they were never spoken, still it now appears that his intent was treasonable; and therefore, as to the third objection, it was clearly agreed that although this Book was inclosed in a box sealed or in his study, still because by this act his intent appears, therefore it is high treason, and Yelverton, the king's Attorney, said, that at common law there be four manners of treasons, 1. Rebellion. 2. To deny the king's title and power, temporal or spiritual. 3. To advance and maintain superior power to the king. 4. In bearing his subjects in hand that the king's government is erroneous, heretical, and unjust, whereby the manner of his government is impeached, and called in question; which Doddridge affirmed, and said that these are undeniable maxims.

and Mr. St. John's Argument in lord Strafford's case, (*infra*) as there quoted.

* There is a very short note of the point in Dyer's Rep. 98. b. pl. 56. The case at large is inserted in this Collection, vol. 1, p. 869.

† Concerning words and writings as overt acts of treason, see East's Pleas of the Crown, ch. 2, s. 55, 56, and the cases and other authorities there referred to. In this Collection see the cases of Algernon Sidney, A. D. 1683. Sir John Fenwick, A. D. 1696.

115. Proceedings in Parliament against FRANCIS BACON Lord Verulam, Viscount St. Albans, Lord Chancellor of England, upon an Impeachment for Bribery and Corruption in the Execution of his Office: And also against Dr. THEOPHILUS FIELD, Bishop of Llandaff, &c. 18 & 19 JAMES, A. D. 1620. [1 Commons Journals, 554. 3 Lords Journals, 53. 1 Cobb. Parl. Hist. 1208.]

PROCEEDINGS IN THE HOUSE OF COMMONS.
March 15, 1620.

SIR Robert Phillips reports from the Committee appointed to enquire into Abuses in the Courts of Justice, viz.

“I am commanded from the said Committee to render an account of some Abuses in the Courts of Justice, which have been presented unto us. In that which I shall deliver, are three parts. First, The Person against whom it is alledged. Secondly, The Matter alledged. Thirdly, The Opinion of the Committee.

1. The Person against whom it is alledged, is no less than the Lord Chancellor, [Francis lord Verulam, viscount St. Albans,] a man

so endued with all parts, both of nature and art, as that I will say no more of him; being not able to say enough. 2. The Matter alledged, is Corruption. 3. The Persons by whom this is presented to us, are two, viz. Awbrey and Egerton. Awbrey's Petition saith, that he having a Cause depending before the Lord-Chancellor, and being tired by delays, was advised by some that are near my lord, to quicken the way by more than ordinary means, viz. by presenting my lord with 100*l*. The poor gentleman not able by any means to come to his wished-for port, struck sail at this, and made a shift to get an 100*l*. from the urer; and having got it, went with sir George Hastings and Mr. Jenkins to Grays-Inn; and

being come to my lord's house, they took the money of him, and carried it in to my lord Chancellor, and came out to him again, saying, my lord was thankful, and assured him of good success in his business. Sir George Hastings acknowledged the giving of advice, and carrying in of the money to my lord, and saith he presented it to my lord as from himself, and not from Awbrey.

"This is all confirmed by divers Letters, but it wrought not the effect which the gentlemen expected; for notwithstanding this, he was still delayed. Egerton sheweth, that he desiring to procure my lord's favour, was persuaded by sir George Hastings and sir Richard Young, to present my lord with a sum of money. Before his advice, he had given a present of 52*l*. and odd shillings in plate, as a testimony of his love; but is doubtful whether before his calling to the seal, or since: but now by mortgaging his estate he got up 400*l*. and sends for sir George Hastings and sir Richard Young, desires their assistance in presenting this money, and told them how much it was. They took it and carried it to my Lord Chancellor as a gratuity from the gentleman; for that my lord (when he was Attorney) stood by him. My lord (as they say) tarted at first, saying it was too much, he would not take it; but at length was persuaded, because it was for favours past, and took it, and the gentleman returned him thanks; saying that their lord said, that he did not only enrich him, but laid a tie on him to assist him in all just and lawful business. Sir George Hastings, and sir Richard Young, acknowledged the receiving and delivery of the purse; but said they knew not what was in it. Then a question was proposed, Whether there were any suit depending during those offerings, either in the Chancery or the Star-chamber; but there was no certain Evidence of it. Thus you see Corruption laid to the charge of a Judge too, a great judge; nay, to the great keeper of the king's conscience.

"Another point came in by-the-bye, shewing that some indirect means are sometimes used (I fear too often) to the courts of justice, "It concerns no less a man than a divine, who is now a bishop,* but then called Dr.

* He was made bishop of Landaff 1619. His share in this transaction does not seem to have impeded his preferment. He was translated to St. David's 1627, and to Hereford 1635. He died 1636. Some of Howell's letters are addressed to him. The fact is, corruption was, as Bacon himself styles it in his Submission of April 22, 1621, *vitium temporis*: all the contemporary writers prove this. See also Luders's Considerations on the Law of High Treason in the article of Levying War, cap. iv." Mr. Luders indeed says, "Bacon was conscious that he did justice better and with more expedition than his contemporaries: it is remarkable that he was not accused of selling *injustice*. The sale of justice would have been sufficiently bad ('nulli vendemus justitiam,' *Magna Charta*

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Field, Mr. Egerton and he being acquainted, and Mr. Egerton's mind being troubled with the ill success of his business, vented it to the divine, who (contrary to his profession) took upon him to broke for him, in such a manner as was never preceded by any. He made Egerton to acknowledge a recognizance of 10,000 marks, with a defeazance, that if my Lord Chancellor did decree it for him, 6,000 marks was to be distributed among those honourable persons that did solicit it for him: but if it did not go as they desired, he promised, *in verbo sacerdotis*, that he would deliver up the bonds.

"This appeared by Letters from the now reverend bishop, but then practical doctor. Mr. Johnson (a moral honest man) perceiving that Mr. Egerton, finding no relief, did intend to prefer a Petition against the Lord Chancellor by one Heales's means, took occasion to talk with Mr. Egerton; asking him, why he would prefer such a scandalous Petition against my lord; he would have him take the money out of the Petition, and then his cause, by the mediation and conference of some other judge with my lord, might be brought to a good end; and for money, if he had lent any, he might be satisfied again.

"Afterwards upon a Petition to the king by sir Rowland Egerton, there was a reference of this matter to the Lord Chancellor, and Mr. Edward Egerton entered into a bond for ten thousand marks. He had treated with one Dr. Sharp, that if he would give 1100*l*. he should have his desire. We sent for Sharp, but he denied that he ever contracted with him. The desire of the committee was, to reform that which was amiss; and they thought fit to give as much expedition as might be, because so great a man's honour is soiled with it, and therefore do think meet that farther inquisition be made this afternoon, and when the truth of the matter is found, then to be sent to the lords. Thus I have faithfully related what hath passed, and with as much duty and respect, as I might to my Lord Chancellor; I desire it to be carried out of the house with a favourable construction."

Ordered, That this matter be further considered by the committee this afternoon. Then the house adjourned.

March 17. Sir Robert Phillips made Report from the Committee of the Abuses in the Courts of Justice, viz.

"We met on Thursday in the afternoon; the principal thing wherein I desired to be satisfied was, whether at the time of giving those Gifts to the Lord Chancellor there were any suit depending before him. In Awbrey's Case it appeared plainly there was: Something accidentally fell out in this Examination, and that is, a Declaration of sir George Hastings, who hath been struggling with himself betwixt gratitude and honesty; but public and private

cap. 49,) but I fear it is impossible to confine Bacon's guilt within that limit."

goods meeting, he preferred the public, and owned, that he taking pity on Awbrey's suit, did give in a box of 100*l.* to the Lord Chancellor, in these terms, or the like, 'That it was 'to help Awbrey in his Cause.' Notwithstanding, not long after, a very prejudicial and murdering order was made against Awbrey in his cause: whereupon sir George Hastings moved my Lord Chancellor to rectify this order. My lord promised to do it, but did it not. The Order was put into the hands of one Churchill (one of the Registers in Chancery) by a servant of the Lord Chancellor's. There are Letters of Awbrey's to the Lord Chancellor touching this business. Now for Mr. Egerton's Case: As the matter was of more weight, so the sum was of larger extent, for there was 400*l.* given them, and a suit then depending in the Star-Chamber; about which time sir Rowland Egerton did prefer a Petition to the king for a reference unto the Lord Chancellor: Whereupon my lord caused him to enter into a bond for 6000 marks to stand to his award. An award was afterwards made, which was refused by Mr. Edward Egerton; thereupon a suit by the Lord Chancellor's direction was commenced against him, and the bond of 6000 marks assigned over to sir Rowland Egerton. About this time Edward Egerton became acquainted with Dr. Field, and related his cause unto him; who pitying him, sent him to two worthy gentlemen, Mr. Dampont and sir John Butler (who is now dead); he makes known his case to them, and desires them to be a means to put off his cause from hearing, because his witnesses were not here. Whereupon Dampont wrote to the duke of Buckingham to have had his letter to the Lord Chancellor to stop it: But the duke said he would not write, because the matter was already decreed, and he would not receive it. Mr. Egerton was drawn into a bond of 10,000 marks for the payment of 6000: and Mr. Dampont being asked, what he and Dr. Field should have had of this money, he said, he did not remember what certain sum: but he said it was more than any cause could deserve in any court of justice.

"In Awbrey's Case this is to be said. That sir George Hastings being at Hackrey, where he dwelt, was sent for by the Lord Chancellor, and accordingly he came to him and found him in bed, who bid him come near him, and willed the rest to depart the room; and then said unto him, 'Sir George, I am sure you love me, and 'I know that you are not willing that any thing 'done by you shall reflect any dishonour upon 'me. I hear, that one Awbrey pretends to 'petition against me; he is a man that you 'have some interest in; you may take him off 'if you please.'

"Sir George Hastings afterwards met with Awbrey, and asked him whether he intended any such thing, and desired to see it, to shew my Lord Chancellor: which sir George accordingly did, and desired my lord to do the poor man justice. My lord promised to do it, and had him bring his counsel; and they did, but

could have no remedy, so the Petition went on. Sir George Hastings, some time since, had conference with my Lord Chancellor; and he told him, 'He must lay it upon his lordship.' 'If you do, George,' said he, 'I must deny it upon my honour.' Thus you see the Relation of what hath passed.

"Now for our Proceedings in it; it is a cause of great weight, it concerns every man here: for if the fountains be muddy, what will the streams be? If the great dispenser of the king's conscience be corrupt, who can have any courage to plead before him? I will present one thing unto you, and then make a request. That which I move, is, that we present his business singly to the lords, and deliver it without exasperation; 1. Because there is but one precedent* for it, in the like case for a chancellor in a cause of corruption. 2. Because the party accused is a peer of the kingdom, sitting in the higher house, whom we cannot meddle with. 3. Because we have no power to give an oath. That which I request is, that those people which have been fettered with much calamity by these courses, may by petition to his majesty, or otherwise, have their cause revived and revised.

Sir Edward Sackville. This honourable lord stands but yet suspected, and I hold not those gentlemen that have testified against him competent witnesses. 1. Because they speak to discharge themselves. 2. Because if he be guilty, they were those that tempted him. But yet, if notwithstanding you resolve to send it up to the lords, let it be presented without any prejudicial opinion, to be weighed in the balance of their lordships judgments. And if they think fit to examine these witnesses, let them.

Sir George Hastings. This adds to my grief; but this is my resolution, I had rather perish with a just sentence here, than escape with a guilty conscience.

Some moved that sir George Hastings and sir Richard Young should be sequestered from parliament till the matter was ended; but there was nothing ordered therein.

Mr. Nerill. After some reluctance within me, I am resolved to speak what my conscience leads me unto. I speak for the good of my country, the honour of my king, and advancement of justice. Justice is the fountain, the king the head thereof, clear as the waters of Siloah, pure as the river of Damascus: but there is a derivative justice brought unto us by channels, those are often muddy and more bitter than the waters of Marah: Such waters flow abundantly in chancery. I will not touch upon the person of him that sits in court, for he is the dispenser of the king's conscience: but because some motions are made against the testimony of those gentlemen, I will say this, I think them fit to sit here, because they are neither delinquents nor accused. My lord means to deny it upon his honour: but I would

* This seems to be the Case of Cardinal Wolsey. See 3 Co. Inst. 148. 4 Co. Inst. 9.

not have that serve his turn, for he himself hath made the nobility swear in chancery. Therefore I would have their lordships informed what privileges they have lost. Next, I would have them note the luxuriant authority of that court, and how it is an inextricable labyrinth, wherein resideth such a monster as gormandizeth the liberty of all subjects whatsoever.

Mr. Recorder Finch. If we shall make but a presentation of this, we do in a sort accuse him, nay judge him: if the gentlemen be admitted to give testimony, before it shall condemn another it must agree with itself. First, I heard him say, he gave it as a present from himself: yet afterwards he saith, he told my Lord Chancellor he had it from Awbrey.—Again, Awbrey speaks not of any delivery of money himself to my Lord Chancellor. Then again it is urged, that a discontented suitor writ letters to my lord: the letters are rejected, not hearkened unto; what doth this but free him? In the other case, if Egerton, out of a desire to congratulate him at his coming to the seal, made my lord a present for his kindnesses and pains in former businesses, what wrong hath he done if he hath received a present? And though a suit were depending, yet who keeps a register in his heart of all causes? Nay, who can, among such a multitude? And for the 6000 marks, there is no colour to say that ever he was to have any part thereof. For taking away the privilege of the nobility in requiring an oath, he found the court possessed of it before he came there; so that we have no sufficient grounds to accuse so great a lord upon that account.—But if we shall present Articles to the lords, what do we (as I said before) but accuse him?

Sir Edward Coke. It is objected, that we have but one single witness; therefore no sufficient proof. I answer, That in the 37th of Eliz. in a complaint against Soldier-Sellers, for that having warrant to take up soldiers for the wars, if they pressed a rich man's son they would discharge him for money, there was no more than *singularis testis* in one matter; but though they were single witnesses in several matters, yet agreeing in one and the same third person, it was held sufficient to prove a work of darkness. For in such works it is a marvel there are any witnesses.—But some object that these men are culpable; and therefore no competent witnesses. I answer, They came not to accuse, but were interrogated.—If I be interrogated, I had rather speak truth than respect any man; and you will make Bribery to be unpunished, if he that carrieth the Bribe shall not be a witness. In this, one witness is sufficient; he that accuseth himself by accusing another, is more than three witnesses: and this was wrought out of them.

Ordered, That the Complaint of Awbrey and Egerton against the Lord Chancellor and the bishop for Corruption, for the 100*l.* and 400*l.* and the recognizance, should be drawn up by sir Robert Phillips, sir Edward Coke, Mr. Noy, and sir Dudley Digges; and that the

same be related to the lords without prejudice or opinion at a conference; and that a Message be sent to the lords for this purpose on Monday next. Adjourned, &c.

March 19.

A Message was sent to the lords by sir Robert Phillips, to desire a Conference touching the Lord Chancellor and the bishop of Landaff, being petitioned against by Awbrey and Egerton.

Sir Robert Phillips reports that the lords had agreed to a Conference.

Mr. Secretary Calvert brings a Message from the king, "That this parliament hath sat a long time, and Easter is near come, and thinks it is fit there should be a cessation for a time; yet the king will appoint no time, but leaves it to yourselves. But for the beginning again, he thinketh the 10th of April a fit time, but will appoint none; only he would have you take care that there be no impediment in the Subsidies.—The king also took notice of the Complaints against the Lord Chancellor, for which he was sorry, for it hath always been his care to have placed the best; but no man can prevent such accidents; but his comfort was, that the house was careful to preserve his honour. And his majesty thought not fit to have the affair hang long in suspense; therefore would not have any thing to hinder it. But for the furtherance thereof, he proposed a Commission of six of the higher house, and twelve of the lower house, to examine it upon oath. This proposition if we liked well, he would send the like to the lords, and this he thought might be done during this Cessation: and though he hoped the Chancellor was free, yet if he should be found guilty, he doubted not but you would do him justice."

Sir Edward Coke said, We should take heed the Commission do not hinder the manner of our parliamentary proceedings.

The Answer returned to the King was, To render him thanks for the first Part of his gracious Message. And for the second, we desired that the like Message may be sent to the lords; for there being so great a concurrence betwixt us, we may have conference with them about it. And then adjourned, &c.

March 20.

Sir Edward Giles made a motion that one Churchil should be called in. Whereupon there was a Petition of one Montacute, Wood, &c. against the Lord Chancellor for taking 300*l.* of the lady Wharton, and making orders, &c. which was read. Churchil and Keeling were said to be Witnesses, and a committee was appointed to examine them.

Sir Robert Phillips reports from the Conference, that according to the commandment of this house he had delivered those Heads which were agreed on at the Conference yesterday; excusing himself if he had failed in any point. That the lords accepted it with a great deal of affection, as sensible of the wrongs done to the Commonwealth; and returned Answer by the Lord Treasurer; First, by way of Question,

Whether we would not reduce them into writing. Resolved No, for no cause; this only consisting of two or three points, clear and plain; and as for the Letters and other things which the lords desired, we would acquaint the house, and doubted not but it would be yielded.

The lords further returned for Answer, That they would proceed in this matter with care, diligence and expedition.

A Message from the lords to signify, that they have taken into consideration the last Conference, and shall need the testimony of two members of this house; and therefore desire, that voluntarily, and without ordering, as private persons, they make declaration upon Oath, and the like for others if occasion were.

The Answer returned was, That the gentlemen would attend voluntarily as private gentlemen, and upon private notice be examined.

Sir Robert Phillips reports from the committee appointed to examine Churchill; from which particular a general may be extracted, conducing to the discovery of Corruption in the Lord Chancellor.

"The lady Wharton having a Cause depending in chancery, many orders were made in it. Amongst the rest, there was an Order made for the dismissal of the Bill, by the consent of the counsel on both sides; which my lady disliking, took Churchill the Register into her coach, and carried him to my Lord Chancellor's, and so wrought that he was willed not to enter the last Order; so that my lady was left at liberty to prosecute it in chancery, brought it to a hearing, and at length got a Decree.

"Keeling being examined, saith, That near about the time of passing this Decree, my lady took an hundred pound (he saw it), and she made him set down the words and style which he should use in the delivery of it. Then she goes to York-house, and delivered it to my Lord Chancellor, as she told him. She carried it in a purse. My lord asked her, 'What she had in her hand?' She replied, 'A purse of my own making,' and presented it to him; who took it and said, 'What lord could refuse a purse of so fair a lady's working?'

"After this my lord made a Decree for her, but it was not perfected; but 200*l.* more being given (one Gardiner being present) her Decree had life. But after the giving of the 100*l.* because she had not 200*l.* ready in money, one Shute dealt with her to convey the land to my Lord Chancellor and his heirs, reserving an estate to herself for life; but she knowing no reason to disinherit her own children, asked Keeling her man what he thought of it; he (like an honest servant) was against it.

"Shute knowing this, sets upon Keeling, and brings him to be willing my lady should do it, with power of revocation upon the payment of 200*l.* but that not being liked, they made a shift to pay 200*l.* in a reasonable time. Keeling lets fall some speeches, as if he had left York-house for the Corruption which was there,

which he himself knew in part. Gardiner, Keeling's man, confirmed the payment of the 300*l.* for the Decree, viz. 100*l.* before, and 200*l.* after. This purchased Decree being lately damned again by my Lord Chancellor, was the cause of this Complaint.

"Keeling saith, 'Sir John Trevor did present my Lord Chancellor with 100*l.* by the hands of sir Richard Young, for a final end to this cause.'

"Sir Rd. Young answered, 'That when he attended my Lord Chancellor, sir John Trevor's man brought a cabinet and a letter to my Lord Chancellor, and intreated me to deliver it; which I did openly; and this was openly done, and this was all I knew of it.'

Sir Edward Coke. Strange to me that this money should be thus openly delivered, and that one Gardiner should be present at the payment of the 200*l.*

Ordered, That sir Robert Phillips do deliver to the lords this afternoon the bishop of Landaff and Awbrey's Letters, and all other Writings that he hath. And then adjourned, &c.

March 21.

Sir Robert Phillips reports from the committee appointed to examine Keeling and Churchill, who informed many Corruptions against the Lord Chancellor.

"1. In the cause betwixt Hull and Holman, Hull gave or lent my lord 1000*l.* since the suit began. 2. In the cause between Wroth and Manwaring, there were 100 pieces given, of which Hunt had 20*l.* 3. Hoddy gave a jewel which was thought to be worth 500*l.* but he himself said it was a trifle of a hundred or two hundred pound price: it was presented to the Lord Chancellor by sir Thomas Peryn and sir Henry Holmes. 4. In the cause between Peacock and Reynell, there was much money given on both sides. 5. In the cause of Barker and Bill, Barker said he was 800*l.* out in gifts since this suit began. 6. In the cause between Smithwick and Welsh, Smithwick gave 300*l.* yet my lord decreed it against him; so he had his money again by piecemeal.—In this and other causes, my lord would decree part; and when he wanted more money he would send for more, and then decree another part. In most causes my lord's servants have undertaken one side or another; insomuch as it was usual for counsel, when their clients came unto them, to ask what friend they had at York-house."

Mr. Mewtys. Touching the persons that inform, I would intreat this honourable house to consider that Keeling is a common solicitor (to say no more of him); Churchill a guilty Register by his own confession: I know that fear of punishment, and hopes of lessening it, may make them to say much, yea more than is true. For my own part, I must say I have been an observer of my lord's proceedings; I know he hath sown the good seed of justice, and I hope that it will prove that the envious man hath sown those tares. I humbly